

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jean Paul Lozada	Team: Squad #02	CCRB Case #: 202001486	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 02/18/2020 7:05 AM, Tuesday, 02/18/2020 5:00 PM	Location of Incident: § 87(2)(b) and over the phone to the 120th Precinct Detective Squad	18 Mo. SOL 4/4/2022	Precinct: 120		
Date/Time CV Reported Thu, 02/20/2020 10:27 PM	CV Reported At: Mayor's Office	How CV Reported: E-mail	Date/Time Received at CCRB Fri, 02/21/2020 1:24 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. An officer			
3. DT3 Daniel Golat	482	950506	WARRSEC
4. DT3 Robert White	5993	942836	WARRSEC
5. DT3 Carl Pattelli	512	944880	WARRSEC
6. DT3 Roberto Pagan	1731	946089	WARRSEC
7. DT3 Marcin Drozniak	03463	938404	WARRSEC

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT2 Arthur Leahy	01783	940367	WARRSEC

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Roberto Pagan	Force: At § 87(2)(b) in Staten Island, Detective Roberto Pagan used physical force against § 87(2)(b)	A . Exonerated
B . DT3 Robert White	Force: At § 87(2)(b) in Staten Island, Detective Robert White used physical force against § 87(2)(b)	B . Exonerated
C . DT3 Carl Pattelli	Force: At § 87(2)(b) in Staten Island, Detective Carl Pattelli used physical force against § 87(2)(b)	C . Exonerated
D . DT3 Daniel Golat	Force: At § 87(2)(b) in Staten Island, Detective ##### Golat used physical force against § 87(2)(b)	D . Exonerated
E . DT3 Marcin Drozniak	Force: At § 87(2)(b) in Staten Island, Detective Marcin Drozniak used a Taser on § 87(2)(b)	E . Exonerated
F . An officer	Force: At § 87(2)(b) in Staten Island, an officer used physical force against § 87(2)(b)	F . Officer(s) Unidentified
G . An officer	Force: At § 87(2)(b) in Staten Island, an officer used a chokehold against § 87(2)(b)	G . Officer(s) Unidentified
H . An officer	Force: At § 87(2)(b) in Staten Island, an officer restricted § 87(2)(b) s breathing.	H . Officer(s) Unidentified
I . DT3 Marcin Drozniak	Force: At § 87(2)(b) in Staten Island, Detective Marcin Drozniak used physical force against § 87(2)(b)	I . Exonerated

Officer(s)	Allegation	Investigator Recommendation
J . Officers	Abuse: At § 87(2)(b) in Staten Island, officers refused to provide their names to § 87(2)(b)	J . Officer(s) Unidentified
K . Officers	Abuse: At § 87(2)(b) in Staten Island, officers refused to provide their shield numbers to § 87(2)(b)	K . Officer(s) Unidentified
L . An officer	Abuse: Over the telephone, an officer refused to provide his name to § 87(2)(b)	L . Complainant Uncooperative
M . An officer	Abuse: Over the telephone, an officer refused to provide his shield number to § 87(2)(b)	M . Complainant Uncooperative
N . An officer	Discourtesy: Over the telephone, an officer spoke discourteously to § 87(2)(b)	N . Complainant Uncooperative

Case Summary

On February 20, 2020, § 87(2)(b) filed this complaint on behalf of herself, her sister § 87(2)(b) and her nephew § 87(2)(b) with the Mayor's Office via e-mail. The CCRB received this case on February 21, 2020.

On February 18, 2020, at approximately 7:05 a.m., Detectives Carl Patelli, Robert White, and Roberto Pagan of Staten Island Warrants arrived at § 87(2)(b) in Staten Island to arrest § 87(2)(b) on an open I-card (Board Review 01). § 87(2)(b) was standing outside and, when he saw the officers arrive, and he ran into the building. The officers chased § 87(2)(b) into the building's common hallway and attempted to place him under arrest by pulling his arms behind his back (**Allegations A, B, C, and D - Force: Physical Force, exonerated**), but § 87(2)(b) offered resistance, and his mother exited the first-floor apartment. The officers requested assistance, and Detectives Marcin Drozniak, Daniel Golat, and Arthur Leahy at the scene. Detective Drozniak deployed his Taser against § 87(2)(b) (**Allegation E - Force: Nonlethal Restraining Device, exonerated**), causing § 87(2)(b) to fall to the floor. Unidentified officers allegedly kicked the top of § 87(2)(b)'s head and placed a knee on the back of § 87(2)(b)'s head near his neck for approximately three minutes, restricting his breathing (**Allegations F, G, and H - Force: Physical Force, Chokehold, Restricted Breathing; officer(s) unidentified**). § 87(2)(b) attempted to grab § 87(2)(b) and Detective Drozniak allegedly pulled her away from § 87(2)(b) causing her back to hit a table (**Allegation I - Force: Physical Force, exonerated**). § 87(2)(b) requested several officers' names and shield numbers, and they allegedly did not respond (**Allegations J and K - Abuse of Authority: Refusal to Provide Name, Refusal to Provide Shield Number; officers unidentified**). § 87(2)(b) was arrested and charged with § 87(2)(b) (Board Review 02).

At approximately 5:00 p.m., § 87(2)(b) called the 120th Precinct Detective Squad, and an unidentified officer answered the phone and refused to spell his name or provide his shield number to her (**Allegations L and M - Abuse of Authority: Refusal to Provide Name/Shield Number, complainant uncooperative**). The officer refused to answer § 87(2)(b)'s questions, laughed at her, and hung up on her (**Allegation N - Discourtesy: Action, complainant uncooperative**).

None of the officers involved were assigned body-worn cameras (BWCs) at the time of the incident (Board Review 03).

Findings and Recommendations

Allegation (A) Force: At § 87(2)(b) **is Staten Island, Detective Roberto Pagan used physical force against** § 87(2)(b)
Allegation (B) Force: At § 87(2)(b) **is Staten Island, Detective Robert White used physical force against** § 87(2)(b)
Allegation (C) Force: At § 87(2)(b) **is Staten Island, Detective Carl Pattelli used physical force against** § 87(2)(b)
Allegation (D) Force: At § 87(2)(b) **is Staten Island, Detective Daniel Golat used physical force against** § 87(2)(b)
Allegation (E) Force: At § 87(2)(b) **is Staten Island, Detective Marcin Drozniak used a Taser on** § 87(2)(b)

§ 87(2)(b) was interviewed via telephone on April 16, 2020 (Board Review 04) and provided a follow-up telephone statement on April 20, 2020 (Board Review 05). § 87(2)(b) was interviewed via video teleconference on August 24, 2020 (Board Review 06). § 87(2)(b) left a brief

telephone statement in a voicemail on February 26, 2020 (Board Review 07), and she failed to respond to subsequent contact attempts to schedule an interview appointment. Detective Drozniak was interviewed on December 10, 2020 (Board Review 08). Detective Pagan was interviewed on February 8, 2021 (Board Review 09). Detective Daniel Golat was interviewed on March 5, 2021 (Board Review 10). Detective White was interviewed on March 11, 2021 (Board Review 11). Detective Leahy and Detective Pattelli were interviewed on March 18, 2021 (Board Review 12. 13).

It is undisputed that § 87(2)(b) ran into the common hallway of his building after Detective Pattelli, Detective White, and Detective Pagan saw him outside.

§ 87(2)(b) stated that he was smoking a cigarette outside his building when he saw the officers arrive, and he ran inside. § 87(2)(b) believed he heard an officer say, “Freeze,” and, “You’re under arrest.” Approximately five to ten seconds after § 87(2)(b) ran into the building, Detective Drozniak fired his Taser at § 87(2)(b) without warning from approximately 10 feet away or more. At the time, Detective Drozniak was standing by the front door in front of the other officers, and § 87(2)(b) was attempting to open the door to his apartment, but the door was locked. § 87(2)(b) did not recall Detective Drozniak saying anything to him before firing his Taser. The prongs pierced § 87(2)(b) near his waist on his back or right side. § 87(2)(b) was tased for approximately 10 to 20 seconds, causing him to fall to the floor onto his back.

§ 87(2)(b) stated that she was awoken by § 87(2)(b) shouting, “Mom!” She exited her apartment and saw § 87(2)(b) being chased down the hallway by officers. § 87(2)(b) yelled, “What did I do?” and screamed for help as the officers pushed him. § 87(2)(b) said, “I’m not going nowhere.” § 87(2)(b) could not see what § 87(2)(b) was doing with his body, but noted he was not swinging at the officers. An unknown officer brought § 87(2)(b) down to the ground, but § 87(2)(b) did not know how. § 87(2)(b) told the officers to get off him. § 87(2)(b) initially stated that § 87(2)(b) was “moving around a lot” while on the floor, but later stated that he was not moving. § 87(2)(b) attempted to calm § 87(2)(b) and to explain § 87(2)(b)’s medical condition to the officers. The officers handcuffed at least one of § 87(2)(b)’s arms. After § 87(2)(b) was on the floor for approximately five minutes, Detective Drozniak entered the building, said something § 87(2)(b) could not recall, and then deployed his Taser against § 87(2)(b) from approximately three to four feet away for approximately 10 to 20 seconds.

Detective White’s, Detective Pagan’s, and Detective Patelli’s statements were generally consistent. They stated that when they arrived outside § 87(2)(b) and § 87(2)(b) noticed them, he immediately ran toward the building, and the officers chased after him. § 87(2)(b) attempted to close the front door on them, but they pushed it open. § 87(2)(b) ran down the hallway and attempted to enter the first-floor apartment. The officers caught up to him and attempted to pull his arms behind his back, but he offered resistance by flailing his arms and refusing to place them behind his back. The officers then requested Detective Drozniak, Detective Golat, and Detective Leahy, who were nearby, to come to the scene.

Detective Drozniak stated that when he arrived at the scene, he saw § 87(2)(b) pushing and kicking at Detectives Patelli, White, and Pagan. The officers tried to control § 87(2)(b) but he kept pushing them and kicked Detective Golat. § 87(2)(b) had bloodshot eyes and a strong odor of alcohol on his breath. Detective Drozniak yelled “Taser, Taser, Taser” hoping § 87(2)(b) would stop resisting, but § 87(2)(b) continued to resist. Detective Drozniak yelled “Taser, Taser, Taser” again and deployed his Taser against § 87(2)(b) from approximately three to four feet away. The prongs pierced § 87(2)(b) on the side of his abdomen and his back, and Detective Drozniak deployed one cycle, causing § 87(2)(b) to fall to the floor and land on his side.

Detective Golat's and Detective Leahy's statements were generally consistent with Detective Drozniak's. Detective Golat stated that he also grabbed § 87(2)(b)'s arm as the officers attempted to handcuff him. He believed § 87(2)(b) to be intoxicated because his clothing had a strong odor of PCP. Detective Leahy stated that there was not enough room for him to also engage with § 87(2)(b) so he stood on the stairs.

Threat, Resistance, and Injury (TRI) Worksheets were prepared for Detective Drozniak, Detective Golat, Detective Leahy, Detective Pattelli, and Detective Pagan (Board Review 14). They indicate that § 87(2)(b) an emotionally disturbed person, was “Wrestling / Grappling” with the officers, and that Detective Golat, Detective Leahy, Detective Pattelli, and Detective Pagan used “Wrestling / Grappling” against § 87(2)(b) to overcome his resistance or aggression and to defend themselves. Detective Drozniak’s TRI Worksheet indicates that he used a Taser against § 87(2)(b) for the same reasons. (Detective Leahy noted that during his CCRB interview that his TRI Worksheet was prepared on his behalf, and that he did not make any physical contact with § 87(2)(b)

Patrol Guide Procedure 221-01 (Board Review 15) allows officers to use force when it is reasonable to ensure the safety of a member of the service, or when it is reasonable to place a person in custody. Factors to be considered in determining whether the use of force is reasonable include the following: the nature and severity of the crime/circumstances; actions taken by the subject; duration of the action; immediacy of the perceived threat or harm to the subject; members of service or bystanders; whether the subject is actively resisting custody; whether the subject is attempting evade arrest by flight; the number of subjects in comparison to the number of members of service; size, age and condition of the subject in comparison to the member of service; subject's violent history if known; presence of hostile crowd or agitators; and whether the subject is apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase likelihood of violence."

Patrol Guide Procedure 221-08 (Board Review 16) states, “A Conducted Electrical Weapon (CEW) can be an effective means of subduing aggressive suspects and emotionally disturbed persons (EDPs)... A CEW should only be used against persons who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or other person(s) actually present... It is prohibited to use a CEW in situations that do not require the use of physical force.”

It is undisputed that § 87(2)(b) ran inside immediately upon seeing the officers. § 87(2)(b) stated that § 87(2)(b) said, “I’m not going anywhere,” and told the officers to get off of him, but she could not see what he was doing with his body. The officers said § 87(2)(b) was flailing his arms to avoid being handcuffed, and that the officers initially at the scene requested the assistance of another unit to place § 87(2)(b) under arrest. § 87(2)(g)

It is

therefore recommended that **Allegations A, B, C, and D** be exonerated.

§ 87(2)(g)

§ 87(2)(g) It is therefore recommended that **Allegation E** be **exonerated**.

Allegation (F) Force: At § 87(2)(b) in Staten Island, an officer used physical force against § 87(2)(b)

Allegation (G) Force: At § 87(2)(b) in Staten Island, an officer used a chokehold against § 87(2)(b)

Allegation (H) Force: At § 87(2)(b) in Staten Island, an officer restricted § 87(2)(b)'s breathing.

Allegation (J) Abuse of Authority: At § 87(2)(b) in Staten Island, officers refused to provide their names to § 87(2)(b)

Allegation (K) Abuse of Authority: At § 87(2)(b) in Staten Island, officers refused to provide their shield numbers to § 87(2)(b)

§ 87(2)(b) stated that after Detective Drozniak deployed his Taser and he fell to the ground, the officers turned him onto his stomach, and an officer kicked the top of his head one time, causing his chin to hit the floor. An officer then put his knee on the back of § 87(2)(b)'s head near his neck for approximately three minutes, restricting his breathing. § 87(2)(b) could not see which officer(s) did this because he was face-down on the ground. § 87(2)(b) was not moving said he could not breathe approximately 30 times.

§ 87(2)(b) did not mention any officer kicking § 87(2)(b)'s head or kneeling on his neck or hearing him say that he could not breathe. She stated that after they exited the building, she asked numerous officers, both individually and collectively, for their names and shield numbers, and they did not respond. However, she was unable to specify which officers she asked.

Each officer interviewed denied kicking § 87(2)(b)'s head and kneeling on his neck or otherwise restricting his breathing. None of them recalled § 87(2)(b) requesting any officer's name or shield number.

§ 87(2)(b) did not see which officer kicked his head or kneeled on his neck, and § 87(2)(b) was unable to specify or describe the officers from whom she requested names and shield numbers.

§ 87(2)(g)

It is therefore recommended that **Allegations F, G, H, J, and K** be closed as **officer(s) unidentified**.

Allegation (I) Force: At § 87(2)(b) in Staten Island, Detective Marcin Drozniak used physical force against § 87(2)(b)

It is undisputed that § 87(2)(b) was in close proximity to § 87(2)(b) while the officers attempted to effect his arrest, and that she grabbed either § 87(2)(b) or Detective Drozniak.

§ 87(2)(b) stated that after Detective Drozniak deployed his Taser against § 87(2)(b) she screamed and "went crazy." She was next to § 87(2)(b) and in between the officers, who were at § 87(2)(b)'s head and feet, and had been holding § 87(2)(b)'s waist before Detective Drozniak deployed the Taser. An officer behind § 87(2)(b) pulled her and told her to get away, and her back struck a table in the hallway. § 87(2)(b) did not know whether she stood up on her own or was lifted when the officers pulled her, but she was standing when her back hit the table. § 87(2)(b) was unable to describe the officer who pulled her.

§ 87(2)(b) stated that § 87(2)(b) tried to "hold" the officers back and tried to calm the situation. § 87(2)(b) was unaware of § 87(2)(b) touching any officer, and he did not believe any officer

touched § 87(2)(b) § 87(2)(b) believed § 87(2)(b) remained standing for the entire incident.

Detective Drozniak stated that § 87(2)(b) was interfering with § 87(2)(b)'s arrest by yelling loudly and making the scene chaotic by making it difficult to hear over her. She was standing up the stairs in the vestibule and was "right on top of" the officers and § 87(2)(b). Someone grabbed Detective Drozniak's arm, but Detective Drozniak was not sure who grabbed him. Detective Drozniak did not recall how he responded to the person grabbing his arm. Detective Drozniak did not recall whether he pushed or pulled § 87(2)(b) but he noted he would have pushed away anyone who grabbed his arm.

Both Detective Pattelli and Detective Leahy stated that § 87(2)(b) grabbed Detective Drozniak before he deployed his Taser against § 87(2)(b). Detective Pattelli believed Detective Drozniak pushed § 87(2)(b) off of him, causing her to step back, and he did not believe her back hit anything. Detective Leahy did not believe any officer pushed § 87(2)(b). None of the other officers interviewed recalled anyone pushing § 87(2)(b).

Patrol Guide Procedure 221-01 (Board Review 15) allows officers to use force when it is reasonable to ensure the safety of a member of the service, or when it is reasonable to place a person in custody. Factors to be considered in determining whether the use of force is reasonable include the following: the nature and severity of the crime/circumstances; actions taken by the subject; duration of the action; immediacy of the perceived threat or harm to the subject; members of service or bystanders; whether the subject is actively resisting custody; whether the subject is attempting evade arrest by flight; the number of subjects in comparison to the number of members of service; size, age and condition of the subject in comparison to the member of service; subject's violent history if known; presence of hostile crowd or agitators; and whether the subject is apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase likelihood of violence."

§ 87(2)(g)

It is therefore recommended that **Allegation I** be exonerated.

Allegation (L) Abuse of Authority: Over the telephone, an officer refused to provide his name to § 87(2)(b)

Allegation (M) Abuse of Authority: Over the telephone, an officer refused to provide his shield number to § 87(2)(b)

Allegation (N) Discourtesy: Over the telephone, an officer spoke discourteously to § 87(2)(b)

In her telephone statement, § 87(2)(b) stated that she called the 120th Precinct Detective Squad at approximately 5:00 p.m. The officer on the phone, who § 87(2)(b) believed was named "Detective Buress," or something similar, refused to spell his name and provide his shield number to § 87(2)(b). The officer refused to answer § 87(2)(b)'s questions, laughed at her, and then hung up on her.

According to the CTS MOS Roster, there was no officer assigned to the 120th Precinct Detective Squad with the last name "Buress" or similar on February 20, 2020.

Between February 25, 2021 and March 20, 2021, five calls were made to § 87(2)(b) and two letters and two emails were sent. § 87(2)(b) left a telephone statement in a voicemail on February 26, 2021, but did not otherwise contact the CCRB to schedule an interview. It is therefore recommended that **Allegations L, M, and N** be closed as **complainant uncooperative**.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to seven other CCRB complaints and has been named as a victim in 13 other allegations (Board Review 17):
 - § 87(2)(b)
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 -
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 -
 -
 -
- § 87(2)(b) has been party to seven other CCRB complaints and has been named a victim in five other allegations (Board Review 17).
 - § 87(2)(b)
 -
- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 17).
- Detective Roberto Pagan has been a member of service for 13 years and has been a subject in four other CCRB complaints and 11 other allegations, of which three were substantiated.
 - 201800734 involved substantiated allegations of Entry of Premises and Search of Premises. The Board recommended charges, and Detective Pagan was found guilty at trial. The NYPD imposed a penalty of forfeiture of seven vacation days.
 - § 87(2)(g)
- Detective Robert White has been a member of service for 14 years and has been s subject in five other CCRB complaints and seven other allegations, none of which was substantiated.
 - § 87(2)(g)
- Detective Carl Pattelli has been a member of service for 13 years and has been a subject in five other CCRB complaints and 11 other allegations, of which three were substantiated.
 - 201409378 involved substantiated Frisk, Strip Search, and Vehicle Search allegations. The Board recommended Command Discipline B, and the NYPD imposed Formalized Training.
 - § 87(2)(g)

- Detective ##### Golat has been a member of service for 9 years and has been a subject in 10 other CCRB complaints and 25 other allegations, none of which was substantiated.

§ 87(2)(g)

- Detective Marcin Drozniak has been a member of service for 15 years and has been a subject in three other CCRB complaints and seven other allegations, of which one was substantiated.
 - 201502519 involved a substantiated allegation of Premises Entered/Searched. The Board recommended Command Discipline B, and the NYPD imposed no penalty.
 - § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of April 23, 2021, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards this to complaint (Board Review 18).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 02

Investigator:	<u>Jean-Paul Lozada</u>	<u>SI Jean-Paul Lozada</u>	<u>07/06/2021</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>AOA</u>	<u>Alexander Opoku-Agyemang</u>	<u>7/6/2021</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date